

PUBLICATIONS DE LA COUR PERMANENTE DE JUSTICE
INTERNATIONALE

SÉRIE A — N° 15

Le 26 avril 1928

RECUEIL DES ARRÊTS

N° 12

DROITS DE MINORITÉS
EN HAUTE-SILÉSIE
(ÉCOLES MINORITAIRES)

PUBLICATIONS OF THE PERMANENT COURT
OF INTERNATIONAL JUSTICE

SERIES A — No. 15

April 26th, 1928

COLLECTION OF JUDGMENTS

No. 12

RIGHTS OF MINORITIES
IN UPPER SILESIA
(MINORITY SCHOOLS)

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF
1928



LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY
1928

PERMANENT COURT OF INTERNATIONAL JUSTICE

THIRTEENTH (EXTRAORDINARY) SESSION

1928.
April 26th.
File E. c. XV.
Docket XIII:2.

Before :

MM. ANZILOTTI,	<i>President,</i>	
HUBER,	<i>Former President,</i>	
WEISS,	<i>Vice-President,</i>	
LODER,		} <i>Judges,</i>
NYHOLM,		
ALTAMIRA,		
YOVANOVITCH,		} <i>Deputy-Judges,</i>
BEICHMANN,		
NEGULESCO,		
WANG,		
SCHÜCKING,		} <i>National Judges.</i>
Count ROSTWOROWSKI,		

JUDGMENT No. 12.

RIGHTS OF MINORITIES IN UPPER SILESIA
(MINORITY SCHOOLS).

The German Government, represented by Dr. Budding,
President of the district of Marienwerder,

Applicant,

versus

The Polish Government, represented by M. J. Mrozowski,
President of the Supreme Court of Warsaw,

Respondent,

THE COURT,

composed as above,

having heard the observations and conclusions of the Parties,

delivers the following judgment :

The German Government, by an Application instituting proceedings filed with the Registry of the Court on January 2nd, 1928, in conformity with Article 40 of the Statute and Article 35 of the Rules of Court, has submitted to the Permanent Court of International Justice a suit concerning the exercise of the rights of minorities in connection with public schools in Upper Silesia, which rights are dealt with in Articles 74, 106 and 131 of the German-Polish Convention concerning Upper Silesia.

In the original English version of the Application the Court is asked for judgment to the effect :

“that Articles 74, 106 and 131 of the German-Polish Convention relating to Upper Silesia of May 15th, 1922, establish the unfettered liberty of an individual to declare according to his own conscience and on his own personal responsibility that he himself does or does not belong to a racial, linguistic or religious minority and to choose the language of instruction and the corresponding school for the pupil or child for whose education he is legally responsible, subject to no verification, dispute, pressure or hindrance in any form whatsoever by the authorities ; that any measure singling out the minority schools to their detriment is incompatible with the equal treatment granted by Articles 65, 68, 72, paragraph 2, and the Preamble to Division II”.

The German Government's Application was, in accordance with Article 40 of the Statute, communicated to the Polish Government on January 3rd, 1928.

On January 2nd, 1928, together with the Application, the German Government had filed its Case in the suit. By an Order made on January 3rd, 1928, the President of the Court recorded the filing of the Case by the Applicant on January 2nd and fixed as follows, in accordance with Article 33, paragraph 3, of the Rules of Court, the time-limits for the filing of the subsequent documents in the written proceedings:

For the filing of the Counter-Case, by the Respondent,
Saturday, February 4th, 1928.

For the filing of the Reply, by the Applicant,
Wednesday, February 22nd, 1928.

For the filing of the Rejoinder, by the Respondent,
Saturday, March 10th, 1928.

The Polish Government having asked for an extension of the time allowed for the filing of its Counter-Case, the date for the filing of this document was, by a further Order, made on February 3rd, fixed at February 20th, 1928. By the same Order, the time-limit for the filing of the Reply by the Claimant was fixed at March 1st. The Counter-Case and the Reply were duly filed on the dates thus fixed.

The time allowed for the filing of the Rejoinder not having been extended, the last document of the written proceedings was filed on March 10th, 1928.

Having regard to the fact that the written proceedings in this case, which was regarded as urgent, were to be concluded on March 10th, the extraordinary session, which had been convoked to enable the Court to give its advisory opinion on the question regarding the jurisdiction of the Danzig

Courts before the forty-eighth Session of the Council of the League of Nations, was not declared closed before that date. The written proceedings having been concluded, the case concerning certain rights of minorities in Upper Silesia (minority schools) was on March 12th, 1928, entered in the list for the thirteenth (extraordinary) Session.

In the course of hearings held on March 13th, 15th and 17th, the Court has heard the oral pleadings, reply and rejoinder submitted by Dr. Budding, President of the district of Marienwerder, Agent for the German Government, and M. J. Mrozowski, President of the Supreme Court of Warsaw, Agent for the Polish Government.

Finally, the Court has had before it the additional documents enumerated in the Annex attached to this judgment.

The submissions of the applicant Government are formulated in the original English version of the Case in the same terms as in the Application.

In the Polish Government's Counter-Case the Court is asked :

“to dismiss the German Government's claim ;

or, in the alternative, to give judgment to the effect that Articles 69, 74, 106 and 131 of the German-Polish Convention of May 15th, 1922, concerning Upper Silesia establish the freedom of every national to declare, in accordance with his conscience and on his personal responsibility, that he does or does not belong to a racial, linguistic or religious minority and also to declare what is the language of a child or pupil for whose education he is legally responsible”.

The submissions of the applicant Government are not amended in the Reply. On the other hand, the Respondent, in his Rejoinder, argues that the Applicant, in his Reply, has excluded the question of the interpretation of Article 69 of the Geneva Convention, and on this ground the Applicant submits that the Court "should decline jurisdiction".

Furthermore, the Respondent in his Rejoinder formulates the objection already mentioned in the Counter-Case, to the effect that the case referred to the Court has already been settled by the Council of the League of Nations.

The submissions of the Parties have not been substantially modified in the oral proceedings. The German Agent, however, referring to the new submissions made in the Polish Government's Rejoinder, has asked the Court for judgment on the merits in accordance with his submissions.

The Polish Agent has maintained his claims in the oral proceedings, though he stated that he had not raised his objection to the jurisdiction as a preliminary objection, but that he meant it to be taken together with the merits.

THE FACTS.

Under Article 88, paragraph 1, of the Treaty of Versailles, the inhabitants of the portion of Upper Silesia the boundaries of which are indicated in the same article, were to be "called upon to indicate by a vote whether they wished to be attached to Germany or to Poland".

The plebiscite took place on March 20th, 1921, and the Conference of Ambassadors gave on October 20th, 1921, in accordance with the opinion given by the Council of the League of Nations, a decision concerning the partition of Upper Silesia between Germany and Poland and the manner in which this partition was to be carried out. This decision contains the following passages amongst others:

"II. The German and Polish Governments will conclude as early as possible..... a convention to give effect to the following provisions¹:

.....

¹ Text taken from League of Nations Official Journal.

K. Rights of Nationality and Domicile and Protection of Minorities in Upper Silesia.

.....

The Treaty with regard to the protection of minorities, etc., concluded on June 28th, 1919, between the United States of America, the British Empire, France, Italy and Japan of the one part, and Poland of the other part, shall be applicable to those parts of Upper Silesia definitely recognized as part of Poland. The principles of equity and the maintenance of the economic life of Upper Silesia demand that the German Government should be bound to accept, at least for the transitional period of fifteen years, dating from the definitive allocation of the territory, stipulations corresponding to Articles 1, 2, 7, 8, 9 (paragraphs 1 and 2), 10, 11 and 12 of the said Treaty, as regards those parts of Upper Silesia definitely recognized as part of Germany.

The provisions of the agreement to be concluded between the German and Polish Governments, in order to put into force the above-mentioned principles, constitute obligations of international concern for Germany and Poland, and shall be placed under the guarantee of the League of Nations in the same way as the provisions of the Treaty of June 28th, 1919.

Any petition addressed by one or more of the inhabitants of Upper Silesia to the Council of the League of Nations with regard to these provisions or to the execution of the provisions of the Treaty of June 28th, 1919, in so far as these provisions affect persons belonging to racial, religious or linguistic minorities, shall be sent to the Government in whose territory the petitioners are domiciled. This Government shall be bound to forward them, with, or without observations, to the Council of the League of Nations, for consideration.

The following bodies shall be constituted to supervise the carrying out of these measures:

1. An Upper Silesian Mixed Commission, consisting of two Germans and two Poles, from Upper Silesia, and of a President of another nationality, appointed by the Council of the League of Nations.

2. An Arbitral Tribunal, entrusted with the duty of settling any private disputes which may result from the application of the convention referred to above. This Tribunal shall be composed of one arbitrator appointed by the German Government, and of one arbitrator appointed by the Polish Government. The Council of the League of Nations shall be requested to appoint the President of this tribunal.

All disputes regarding the execution and interpretation of this convention shall be settled in conformity with the provisions of this convention."

The Treaty concluded on June 28th, 1919, between the United States of America, the British Empire, France, Italy and Japan, on the one part, and Poland, on the other part, is the Treaty of Minorities hereinafter quoted.

The German-Polish Convention regarding Upper Silesia, negotiated in accordance with the Decision of the Conference of Ambassadors, was signed at Geneva on May 15th, 1922. The articles of this Convention which are of some importance in connection with the present case are reproduced in the Annex.

* * *

The dispute brought before the Court by the Application filed on January 2nd, 1928, by the German Government arises out of the application in practice of the provisions of the Geneva Convention concerning the protection of minorities.

The history of this dispute is as follows, according to the reports adopted by the Council of the League of Nations, which have been corroborated by the statements of the Parties:

During the year 1926, the Polish authorities ordered an administrative enquiry to be held in order to establish the authenticity of applications for admission to the minority schools and to ascertain whether such applications emanated from persons authorized to submit them, as also to verify the existence of the circumstances contemplated in Articles 106 and 131 of the Geneva Convention in regard to the children in respect of whom the applications had been made.

As a result of the investigations, 7,114 entries of children in the registers of the minority schools were on various grounds declared null and void by the authorities, and at the beginning of the school-year 1926-1927 all pupils whose names had been struck off were excluded from attendance. In many cases police summonses were issued against parents who refused to send their children to school. A number of parents were condemned to pay fines for not complying with the law concerning compulsory attendance at school.

On September 25th, 1926, the *Deutscher Volksbund für Polnisch Oberschlesien* sent to the Minorities Office at Katowice a petition based on Articles 149 to 157 of the Geneva Convention. In this petition, the *Volksbund* sought a declaration to the effect that the decisions of the Voïvode of Silesia, annulling entries in the school registers on the ground that the children entered did not belong to the linguistic minority, were illegal and also submitted that, until a decision had been given upon this petition, the Voïvode could neither "inflict penalties nor exercise measures of compulsion in respect of either the persons responsible for the education of children or of the children themselves".

In accordance with Article 152 of the Geneva Convention, this petition was transmitted for his opinion to the President of the Mixed Commission with the observations of the Polish Minorities Office.

In the Opinion given by him on December 15th, 1926, the President of the Mixed Commission arrived at the following conclusion¹:

"1. In view of Articles 75 and 131 of the Geneva Convention, the general administrative enquiry which took place in the summer of 1926 for the hearing of all parents, guardians, etc., who had entered children for the minority schools was not justified.

2. The following entries for the minority schools were wrongfully rejected:

A. All entries of children whose parents, guardians, etc., upon examination, formally expressed the desire to send their children to the German minority school irrespective of whether they stated the mother-tongue to be Polish, German and Polish, or German.

B. All entries of children whose parents, guardians, etc., upon examination, made no declaration as to the school they desired their children to attend, irrespective of whether they stated the mother-tongue to be Polish, German and Polish, or German.

¹ Text taken from League of Nations Official Journal.

C. All entries of children whose parents, guardians, etc., upon examination, expressed the desire to have their children taught in German and Polish, but did not specify whether they were to be taught in the German minority school or in the Polish majority school, irrespective of whether they stated the mother-tongue to be Polish, German and Polish, or German.

D. The entries of the 1,307 children whose parents, guardians, etc., did not respond to the summons to appear for examination in the summer of 1926, and whose entries were annulled on this ground.

All the children included under A, B, C and D shall immediately and *ex officio* be admitted to the minority schools, with the exception of those who were excluded:

- (a) because they did not possess Polish nationality;
- (b) because they were entered by a person not legally responsible for their education;
- (c) because they did not belong to the school district;
- (d) because they should have attended another school;
- (e) because they were no longer subject to the obligation to attend school.

The petitioner may submit special requests as regards these categories of pupils.

3. The competent authorities are requested to issue no police summonses for failure to comply with the law regarding attendance at school to parents, guardians, etc., of children who, in virtue of paragraph 2 of the present Opinion, are to be admitted *ex officio* to the minority schools. The authorities are also requested to withdraw the summonses already issued if the latter have not already been pronounced upon by the courts."

After receiving the Opinion of the President of the Mixed Commission, the Voïvode of Silesia, on January 13th, 1927, declared that he was unable to comply with it in its entirety, though he added that he would satisfy any legitimate demands made by the German minority in Polish Upper Silesia in regard to educational matters.

The Voïvode's declaration did not satisfy the *Deutscher*

Volksbund and accordingly the latter announced its intention of appealing under Articles 149 to 157 of the Geneva Convention to the Council of the League of Nations. The *Deutscher Volksbund's* appeal dated January 15th, 1927, was transmitted on February 11th, 1927, through the Polish Government to the Secretary-General for submission to the Council. The Polish Government's observations regarding this appeal were submitted to the Council by a letter dated February 18th, 1927.

The Council of the League of Nations considered the question at meetings held on March 5th, 8th, and 12th; one aspect of the question again came before the Council on December 8th, 1927.

On March 12th, 1927, the Council adopted a Resolution which amongst other things directed the attention of the Polish Government to "the great importance of not insisting upon the measures taken by its local authorities to exclude from the minority schools the following categories of children for whom applications for admission have been received:

"1. Demands for admission invalidated because the parents, guardians, etc., did not comply with the invitation to appear at the enquiry held during the summer of 1926.

"2. Demands for admission invalidated on the grounds that the children to be admitted, whose mother-tongue was stated at the time of the enquiry to be both German and Polish, did not belong to the German minority."

The Council also considered it inexpedient to admit to minority schools children who spoke only Polish. It decided to institute a system of enquiry into the concrete cases falling under the categories mentioned in 1 and 2 above which might appear doubtful to the Polish local school authorities.

According to the terms of the Resolution adopted by the Council, "a similar system of enquiry might also be applied in the case of any fresh demands for the admission of children that may subsequently be received from persons legally responsible for their education, when such cases appear doubtful to the Polish local school authorities. The object of the

enquiry will be to ascertain whether or not a child speaks the school language used in the minority school so that it can usefully attend that school."

It was decided that the method of enquiry should be as follows: In every doubtful case the local authorities were to refer the question to the President of the Upper Silesian Mixed Commission, assisted by a Swiss national, who would be an expert in educational matters, appointed in principle by the Council of the League of Nations. If, in view of the expert's opinion as to the child's knowledge of German, the President declared that it would be useless for the child to attend the minority school, the child would be excluded from that school.

This system of enquiry was also to be applied in the case of children in respect of whom the persons legally responsible for their education had declared at the enquiry of 1926 that their mother-tongue was Polish, should these persons express a desire to that effect. In such cases, the child in question was to be allowed to enter the minority school if, in view of the expert's opinion as to its knowledge of German, the President declared that the child could usefully be admitted to that school.

The Resolution in question was adopted after a discussion in the course of which the German representative pointed out that the report to the Council left open the legal question raised in connection with the case.

The Polish Government, by means of a note from the Polish delegation to the League of Nations to the Secretary-General, dated October 18th, 1927, requested the Rapporteur to the Council upon the question to give a decision as to whether the system of enquiry established by the Council Resolution of March 12th, 1927, was to be applied, in accordance with sub-paragraph 3 of paragraph II (quoted above) to 735 children of the school-year 1927-1928. This step was taken in accordance with paragraph IV of the above-mentioned Resolution, which runs as follows:

"Any question concerning the execution of the above provisions which the Polish Government or the President of the Mixed Commission may desire to have investigated shall, for greater convenience, be definitely settled by the

Rapporteur to the Council unless the Rapporteur considers it necessary to refer it to the Council."

It appears from the reply of M. Urrutia, the Rapporteur to the Council, that he considered that the system of enquiry instituted by the Resolution of March 12th, 1927, was applicable to the 735 children referred to in the Polish Note of October 18th, 1927.

As the Rapporteur pointed out at the Council meeting of December 8th, 1927, this opinion did not prejudge any decision which the Council itself might be called upon to take in regard to the children of the school-year 1927-1928.

At the same meeting, the German representative explained that the decision taken by the Council in March, 1927, had been regarded by him as applying solely to the children of the 1926-1927 class. He observed that there was a divergence of opinion amongst the Members of the Council in regard to this point, and held that the time had come finally to clear up the legal questions of principle governing the admission of children to German minority schools. Accordingly, since the dispute was one of a legal nature, he stated that it was now his intention to apply to the Permanent Court of International Justice for an interpretation of the relevant clauses of the Geneva Convention.

The Council noted the statement of the German representative with the observation that it was understood that the examinations then proceeding of children belonging to the school-year 1927-1928 would continue. The decision to be given by the Court would determine whether children who, as a consequence of these examinations, might be transferred to the Polish school, should finally be admitted to the minority schools.

* * *

In his oral address to the Court, the Agent for the German Government also alluded to the report concerning a new petition made by the *Deutscher Volksbund* of Polish Upper Silesia, which report was adopted by the Council of the League of Nations on March 7th, 1928.

By means of a petition dated January 30th, 1928, and addressed directly to the Council of the League of Nations under Article 147 of the Geneva Convention, the *Deutscher Volksbund* submitted to the Council a question relating to the establishment of a minority elementary school in the school district of Biertultowy, in Polish Upper Silesia. In the observations submitted by it on March 1st, 1928, in regard to this petition, the Polish Government expressed the opinion that the main question raised in the petition, namely, the question concerning the opening of the minority school of Biertultowy, could not usefully be considered by the Council at the moment, since it was bound up with the question of the interpretation of Articles 106 and 131 of the Geneva Convention and the interpretation of these articles was then the subject of proceedings before the Permanent Court of International Justice at The Hague. The *Deutscher Volksbund* having pointed out that, prior to its direct appeal to the Council, it had submitted its petition to the Polish Office of Minorities at Katowice in accordance with the procedure laid down in Articles 149 to 157 of the Geneva Convention, but had been unable to obtain any answer concerning the action taken in regard to that communication, the Polish Government further explained that the reason why it had not hitherto seen fit to forward the appeal in question to the Council was simply because it held that the question forming the subject of the petition could not usefully be considered by the Council for the time being.

The Council noted this statement of the Polish Government and decided to postpone consideration of the question concerning the creation of the minority school at Biertultowy until the Permanent Court of International Justice had given its decision upon the German Government's Application of January 2nd, 1928, to which the Polish Government had made reference.

THE LAW.

I.

Article 72 of the Geneva Convention is as follows¹:

(Article 12 of the Minorities Treaty of June 28th, 1919.)

1. — L'Allemagne agréee que, dans la mesure où les sti-

1. — La Pologne agréee que, dans la mesure où les stipu-

¹ The English text quoted below follows the official English text of the corresponding article (12) of the Minorities Treaty.

1. Germany agrees that the stipulations in the foregoing articles, so far as they affect persons belonging to racial, religious or linguistic minorities, constitute obligations of international concern and shall be placed under the guarantee of the League of Nations. They shall not be modified without the assent of a majority of the Council of the League of Nations.

2. Germany agrees that any Member of the Council of the League of Nations shall have the right to bring to the attention of the Council any infraction, or any danger of infraction, of any of these obligations, and that the Council may thereupon take such action and give such direction as it may deem proper and effective in the circumstances.

3. Germany further agrees that any difference of opinion as to questions of law or fact arising out of these articles between the German Government and any other Power, a Member of the Council of the League of Nations, shall be held to be a dispute of an international character under Article 14 of the Covenant of the League of Nations. The German Government hereby consents that any such dispute shall, if the other Party thereto demands, be referred to the Permanent Court of International Justice. The decision of the Permanent Court shall be final and shall have the same force and effect as an award under Article 13 of the Covenant.

1. Poland agrees that the stipulations in the foregoing articles, so far as they affect persons belonging to racial, religious or linguistic minorities, constitute obligations of international concern and shall be placed under the guarantee of the League of Nations. They shall not be modified without the assent of a majority of the Council of the League of Nations. The United States, the British Empire, France, Italy and Japan hereby agree not to withhold their assent from any modification in these articles which is in due form assented to by a majority of the Council of the League of Nations.

2. Poland agrees that any Member of the Council of the League of Nations shall have the right to bring to the attention of the Council any infraction, or any danger of infraction, of any of these obligations, and that the Council may thereupon take such action and give such direction as it may deem proper and effective in the circumstances.

3. Poland further agrees that any difference of opinion as to questions of law or fact arising out of these articles between the Polish Government and any one of the Principal Allied and Associated Powers or any other Power, a Member of the Council of the League of Nations, shall be held to be a dispute of an international character under Article 14 of the Covenant of the League of Nations. The Polish Government hereby consents that any such dispute shall, if the other Party thereto demands, be referred to the Permanent Court of International Justice. The decision of the Permanent Court shall be final and shall have the same force and effect as an award under Article 13 of the Covenant.

pulations des articles précédents affectent des personnes appartenant à des minorités de race, de religion ou de langue, ces stipulations constituent des obligations d'intérêt international et seront placées sous la garantie de la Société des Nations. Elles ne pourront être modifiées sans l'assentiment de la majorité du Conseil de la Société des Nations.

2. — L'Allemagne agréée que tout Membre du Conseil de la Société des Nations aura le droit de signaler à l'attention du Conseil toute infraction ou danger d'infraction à l'une quelconque de ces obligations, et que le Conseil pourra procéder de telle façon et donner telles instructions qui paraîtront appropriées et efficaces dans la circonstance.

3. — L'Allemagne agréée en outre qu'en cas de divergence d'opinion, sur des questions de droit ou de fait concernant ces articles, entre le Gouvernement allemand et une Puissance quelconque, Membre du Conseil de la Société des Nations, cette divergence sera considérée comme un différend ayant un caractère international selon les termes de l'article 14 du Pacte de la Société des Nations. Le Gouvernement allemand agréée que tout différend

lations des articles précédents affectent des personnes appartenant à des minorités de race, de religion ou de langue, ces stipulations constituent des obligations d'intérêt international et seront placées sous la garantie de la Société des Nations. Elles ne pourront être modifiées sans l'assentiment de la majorité du Conseil de la Société des Nations. Les États-Unis d'Amérique, l'Empire britannique, la France, l'Italie et le Japon s'engagent à ne pas refuser leur assentiment à toute modification desdits articles, qui serait consentie en due forme par une majorité du Conseil de la Société des Nations.

2. — La Pologne agréée que tout Membre du Conseil de la Société des Nations aura le droit de signaler à l'attention du Conseil toute infraction ou danger d'infraction à l'une quelconque de ces obligations, et que le Conseil pourra procéder de telle façon et donner telles instructions qui paraîtront appropriées et efficaces dans la circonstance.

3. — La Pologne agréée en outre qu'en cas de divergence d'opinion, sur des questions de droit ou de fait concernant ces articles, entre le Gouvernement polonais et l'une quelconque des Principales Puissances alliées et associées ou toute autre Puissance, Membre du Conseil de la Société des Nations, cette divergence sera considérée comme un différend ayant un caractère international selon les termes de l'article 14 du Pacte de la Société

de ce genre sera, si l'autre Partie le demande, déféré à la Cour permanente de Justice. La décision de la Cour permanente sera sans appel et aura la même force et valeur qu'une décision rendue en vertu de l'article 13 du Pacte.

des Nations. Le Gouvernement polonais agréé que tout différend de ce genre sera, si l'autre Partie le demande, déféré à la Cour permanente de Justice. La décision de la Cour permanente sera sans appel et aura la même force et valeur qu'une décision rendue en vertu de l'article 13 du Pacte.

Relying on paragraph 3 of this article, according to the terms of which any State being a Member of the Council of the League of Nations has the right to bring before the Court any dispute "as to questions of law or fact arising out of these articles" (that is to say, the articles which in Division I precede Article 72; see Annex), the German Government has, in its Application and in its Case, formulated the submission the terms of which have been reproduced above.

This submission would seem to comprise three contentions the first two of which must be taken together and are, in the light of the discussions which have taken place before the Council of the League of Nations, designed to obtain from the Court a statement in accordance with the contention formulated before the Council by the German representative, namely, "that even a child which knows no language but Polish must be allowed admission to the minority school", and "that the decision as to which school the child is to attend depends solely upon its parents' wishes, irrespective of the language spoken by the child".

The contentions comprised in the German Government's submission appear to be as follows:

(1) Articles 74, 106 and 131 of the Geneva Convention establish the unfettered liberty of any person to declare, according to his own conscience and on his own personal responsibility, that he does or does not belong to a racial, linguistic or religious minority, subject to no verification, dispute, pressure or hindrance in any form whatsoever on the part of the authorities.

(2) The above-mentioned articles also established the unfettered liberty of any person to choose the language of

instruction and the corresponding school for the pupil or child for whose education he is responsible—likewise subject to no verification, dispute, pressure or hindrance in any form whatsoever on the part of the authorities.

(3) Any measure singling out the minority schools to their detriment is incompatible with the equal treatment granted by Articles 65, 68, 72, paragraph 2, and the Preamble to Division II.

The submissions of the Polish Government's Counter-Case have been set out above.

It has also been remarked that in his written Rejoinder the Agent for the Polish Government submitted that the Court should decline jurisdiction and he maintained his submission in the oral proceedings, though stating that he did not raise this objection as a preliminary objection but intended it to be taken with the merits. The same applies as regards the objection to the effect that the matter had already been settled by the Council of the League of Nations.

The word *débouter* (dismiss) in the Polish Government's main submission must be taken as possessing the meaning ordinarily attaching to it in French law; it is therefore clear that this submission relates to the merits of the suit and means that the Polish Government disputes the accuracy of the German Government's contentions and asks the Court to dismiss the claim.

The terms of the alternative (*éventuelle et subsidiaire*) submission of the Polish Government, if compared with the submission of the German Government, also show that the Polish Government does not accept the German Government's contentions. The Court will later have to consider more closely the differences of opinion existing between the Parties in regard to these contentions. But it seems desirable to observe already in this connection that the following facts amongst others emerge from a comparison between the two submissions:

Poland holds that, as well as the articles quoted in support of the first two contentions of the German Government, Article 69 of the Convention must also be taken into account;

Poland does not admit that the articles in question bestow unfettered liberty on any person "to choose the language of instruction and the corresponding school for the pupil or

child for whose education he is legally responsible", but only "liberty to declare what is the language of a pupil or child"; and

neither does Poland accept in its entirety the German contention regarding exemption in the exercise of these rights from any "verification, dispute, pressure or hindrance on the part of the authorities".

* * *

The Court will now proceed to consider the objection to the jurisdiction formulated by the Agent for the Polish Government in his written Rejoinder. This objection is based on the following argument :

"It appears from the final observations of No. III of the Reply that the German Government excludes the question of the interpretation of Article 69 of the Geneva Convention when it says :

"No doubt can exist that Article 131, in connection with Article 74, regulates the question of admission to the minority schools exhaustively and clearly for both parts of the plebiscite district."

It is only in the Reply that the German Government defines the subject of the dispute so clearly, and this necessarily raises the question of jurisdiction. Only differences of opinion as to questions of law or fact arising out of the articles which precede Article 72, and not out of those which follow it, may be referred to the Court. The terms of paragraph 3 of Article 72 of the Convention are quite clear."

In regard to this objection, the Agent for the German Government has in the first place submitted that it has been presented too late—since preliminary objections, according to Article 38 of the Rules of Court, must be made at latest in the Counter-Case. He argues that the Polish Government might very well have raised the question of jurisdiction in its Counter-Case, on the ground that the German Government had not cited Article 69 in support of its interpretation. He also denies that the German Government has adopted the standpoint that Article 69 should not be taken into consideration, but he regards this point as of no importance since he

holds that the Polish Government is mistaken in its opinion that recourse may only be had to the Court for disputes concerning Articles 64 to 71.

Article 38 of the Rules of Court is as follows :

“When proceedings are begun by means of an application, any preliminary objection shall be filed after the filing of the Case by the Applicant and within the time fixed for the filing of the Counter-Case.

The document submitting the objection shall contain a statement of facts and of law on which the plea is based, a statement of conclusions and a list of the documents in support ; these documents shall be attached ; it shall mention the evidence which the Party may desire to produce.

Upon receipt by the Registrar of the document submitting the objection, the Court, or the President if the Court is not sitting, shall fix the time within which the Party against whom the plea is directed may submit a written statement of its observations and conclusions ; documents in support shall be attached and evidence which it is proposed to produce shall be mentioned.

Unless otherwise decided by the Court, the further proceedings shall be oral. The provisions of paragraphs 4 and 5 of Article 69 of the Rules shall apply.”

The object of this article was to lay down when an objection to the jurisdiction may validly be filed, but only in cases where the objection is submitted as a preliminary question, that is to say, when the Respondent asks for a decision upon the objection before any subsequent proceedings on the merits. It is exclusively in this event that the article lays down what the procedure should be and that this procedure should be different from that on the merits.

But it does not follow from this that an objection to the jurisdiction which is not filed as a preliminary objection in the sense indicated above, can be taken at any stage of the proceedings.

The Court's jurisdiction depends on the will of the Parties. The Court is always competent once the latter have accepted its jurisdiction, since there is no dispute which States entitled to appear before the Court cannot refer to it. Article 36 of

the Statute, in its first paragraph, establishes this principle in the following terms :

“The jurisdiction of the Court comprises all cases which the Parties refer to it and all matters specially provided for in treaties and conventions in force.”

[This principle only becomes inoperative in those exceptional cases in which the dispute which States might desire to refer to the Court would fall within the exclusive jurisdiction reserved to some other authority.] That, however, is not the position in the present suit; for the jurisdiction possessed by the Council of the League of Nations under Articles 147 and 149 of the Geneva Convention to decide upon individual or collective petitions, is entirely distinct from, and in no respect restricts, the Court's jurisdiction to hear and determine disputes between States. This is shown by the fact that the jurisdiction derived by the Council from these articles also covers the articles of Division I of this Part of the Convention in regard to which Article 72, paragraph 3, expressly confers jurisdiction upon the Court in the case of disputes between the States therein mentioned.

[The Court's position, in regard to jurisdiction, cannot be compared to the position of municipal courts, amongst which jurisdiction is apportioned by the State, either *ratione materiæ* or in accordance with a hierarchical system. This division of jurisdiction is, generally speaking, binding upon the Parties and implies an obligation on the part of the Courts *ex officio* to ensure its observance. Since in such cases the raising of an objection by one Party merely draws the attention of the Court to an objection to the jurisdiction which it must *ex officio* consider, a Party may take this step at any stage of the proceedings.]

[The acceptance by a State of the Court's jurisdiction in a particular case is not, under the Statute, subordinated to the observance of certain forms, such as, for instance, the previous conclusion of a special agreement.]

Thus, in Judgment No. 5 the Court has accepted as sufficient for the purpose of establishing its jurisdiction a mere declaration made by the Respondent in the course of the proceedings agreeing that the Court should decide a point which, in the

Court's opinion, would not otherwise have come within its jurisdiction. [And there seems to be no doubt that the consent of a State to the submission of a dispute to the Court may not only result from an express declaration, but may also be inferred from acts conclusively establishing it. It seems hard to deny that the submission of arguments on the merits, without making reservations in regard to the question of jurisdiction, must be regarded as an unequivocal indication of the desire of a State to obtain a decision on the merits of the suit.] And, as the Court has already observed, the submissions of the Counter-Case aim at a decision on the merits.

The Court is fully aware that the German Government submitted the Application instituting proceedings under Article 72, paragraph 3, of the Geneva Convention and, therefore, in its capacity as Member of the Council of the League of Nations, whereas, in regard to the questions submitted to the Court exclusively in virtue of the consent of the Parties, the German Government can only appear as a contracting Party to the Geneva Convention.

The Court, however, holds that there is nothing in this Convention or in the principles governing the Court's jurisdiction to prevent questions not falling within the category of those in respect of which compulsory jurisdiction is established, from being submitted to the Court by agreement between the Parties, notwithstanding the fact that the suit has been brought on the basis of the clause conferring compulsory jurisdiction. The Court, in this connection, refers to what it observed in Judgment No. 5, already referred to, namely, that a dispute relating to Protocol XII of Lausanne, in regard to which no provision was made for its jurisdiction, had been validly submitted to it by virtue of the consent of the Respondent, and this was in a suit brought by the Greek Government under Article 26 of the Mandate for Palestine and in its capacity as a Member of the League of Nations. It is true that in this case the consent of the Respondent took the form of an express declaration, whereas in the present case, it only follows from the fact of having asked for a decision on the merits, without making reservations as to the question of jurisdiction. This circumstance, however,

cannot, in the Court's opinion, justify a different conclusion, since there is no rule laying down that consent must take the form of an express declaration rather than that of acts conclusively establishing it.

[If, in a special case, the Respondent has, by an express declaration, indicated his desire to obtain a decision on the merits and his intention to abstain from raising the question of jurisdiction, it seems clear that he cannot, later on in the proceedings, go back upon that declaration. This would not hold good only if the conditions under which the declaration had been made were such as to invalidate the expression of intention, or if the Applicant had, in the subsequent proceedings, essentially modified the aspect of the case, so that the consent, given on the basis of the original claim, could not reasonably be held to apply to the claim in the form which it now assumes. And, in the Court's opinion, there is no reason for dealing otherwise with cases in which the intention of submitting a matter to the Court for decision has been implicitly shown by the fact of arguing the merits without reserving the question of jurisdiction.]

The Respondent seems also to share this view, a fact which appears from the manner in which he justifies, in his Rejoinder, the raising of his objection at this stage in the proceedings only. He bases his objection on the fact that the German Government in its Reply discards, as irrelevant to the case, Article 69 of the Geneva Convention; this fact, in his opinion, did not emerge so clearly from the German Case.

The Court, however, does not consider that this reason is sufficient to justify the withdrawal of the consent already implicitly given. The Applicant, in his Reply, has not altered his submission in which he only cites, in support of his first two contentions, articles of the Convention following Article 72. The Counter-Case itself shows that the Agent for the Polish Government had already bestowed attention to this circumstance and that he might very well have raised the question of jurisdiction in his Counter-Case if he had wished. Instead of doing so, the Polish Government, in its Counter-Case, merely lays stress on the importance of Article 69 for the purposes of the decision on the merits of the suit, and

the German Government, in its Reply, accepts this line of discussion and maintains that Article 69 constitutes an argument in support of its contentions. Even if one were disposed to regard the consent to the examination of the German submissions by the Court as depending on Article 69 being taken into consideration, this condition would thus have been fulfilled. Indeed, as will be shown later, the Court, when considering the merits, has itself taken up the standpoint that Article 69 must be taken into account, in conformity with the views expressed by the Polish Government in its Counter-Case.

Furthermore, the declarations of the Polish Government which, as has already been stated, were recorded by the Council at its meeting of March 7th, 1928, also tend to indicate the significance to be attached to the fact that the Polish Government, in its Counter-Case, has replied on the merits of the suit without making any reservations.

The Court, therefore, arrives at the conclusion that the Polish Government has implicitly accepted the jurisdiction of the Court to give judgment on the merits in respect of all the claims of the German Government and that the objection to the jurisdiction made in the Rejoinder cannot invalidate the acceptance which existed at the time of the submission of the Counter-Case.

Moreover, even if this were not the case, the argument against the Court's jurisdiction, which is based on Article 72, paragraph 3, could have no bearing on the third contention of the German Government, in so far as that contention is based on Articles 65 and 68 of the Convention, which articles are amongst those contemplated in Article 72, paragraph 3.

The Court, having established that it is competent in virtue of the acceptance of its jurisdiction by the Respondent, need not consider whether, and to what extent, the first two contentions of the German Government's submission would also fall within the scope of the jurisdiction conferred upon it by Article 72, paragraph 3, of the Geneva Convention.

Nevertheless, as the German Government has expressed the opinion that the Court's jurisdiction covers disputes concerning the stipulations of Division II of Part III of the Convention, and therefore also the articles cited by it in

support of its first two contentions, the Court desires to make the following observations.

This opinion is based on the view that the League of Nations' guarantee, mentioned in paragraph 3 of the Preamble to Division I, also extends to the provisions of Division II.

The Court is unable to accept this opinion.

The Preamble in question runs as follows¹:

"Whereas the Conference of Ambassadors decided, on October 20th, 1921:

1. that the Treaty with regard to the Protection of Minorities, etc., concluded on June 28th, 1919, between the United States of America, the British Empire, France, Italy and Japan of the one part, and Poland of the other part, should be applicable to those parts of Upper Silesia definitely recognized as part of Poland;

2. that the principles of equity and the maintenance of the economic life of Upper Silesia demand that the German Government should be bound to accept, at least for the transitional period of fifteen years dating from the definitive allocation of the territory, stipulations corresponding to Articles 1, 2, 7, 8, 9 (paragraphs 1 and 2), 10, 11 and 12 of the said Treaty as regards those parts of Upper Silesia definitely recognized as part of Germany;

3. that the provisions of the agreement to be concluded between the German and Polish Governments in order to put into force the above-mentioned principles, constitute obligations of international concern for Germany and Poland, and shall be placed under the guarantee of the League of Nations in the same way as the provisions of the Treaty of June 28th, 1919;

the two contracting Parties have agreed on the following provisions...."

The object of the Preamble is to show the purpose of the provisions comprised in the first Division, and this appears clearly from its terms ("whereas the Conference of Ambassadors decided.... the two contracting Parties have agreed on the following provisions...."). Then follow the provisions of the Division printed in parallel texts, one applying to Germany and the other applying to Poland. The provisions in Articles

¹ The English text of those passages of the Decision of the Conference of Ambassadors which are reproduced in the Preamble is taken from the League of Nations Official Journal.

65 to 72 are a repetition of those contained in the Minorities Treaty, which, in accordance with the Decision of the Conference of Ambassadors, Germany had to accept.

It therefore clearly appears that it is the provisions of Division I itself which constitute the carrying out (or, according to the terms of the Preamble, "the putting into force") of "the above-mentioned principles laid down" by the Conference of Ambassadors¹.

Had it been otherwise, it would have been possible to find elsewhere in the Convention an expression of the idea that the provisions of Article 72—which unquestionably are there for the purpose of more precisely defining what is to be understood by the guarantee of the League referred to in the Preamble to Division I—should also apply to the provisions of Division II. But one searches in vain for an expression of such an idea in the Convention which, far from putting the numerous provisions of Division II on the same footing as those of Division I, draws a very marked distinction between them.

It is true that the resolutions by which the Council of the League of Nations declared that it undertook the guarantee of the provisions of the Geneva Convention are so generally worded that they might lead to the supposition that it was not intended to distinguish between the provisions of the two Divisions. But such an inference cannot prevail in face of the terms of the Convention. The fact that, according to Division III, certain functions are conferred upon the Council with regard to the provisions of Division II as well, may moreover indicate that these provisions were considered as being guaranteed by the League of Nations, although in a different manner from the provisions of Division I.

For these reasons, the Court is unable to accept a construction according to which the guarantee of the League of Nations as defined in Article 72 of the Geneva Convention would also extend to the provisions of Division II.

¹ In Annex 3 to the Recommendation made by the Council of the League of Nations and accepted by the Conference of Ambassadors, the phrase which in the English text corresponds to the phrase *mettre en pratique* of the French text is "put into force" (*mettre en vigueur*).

*

The Court therefore concludes that it cannot allow the plea to the jurisdiction raised by the Polish Government. But, as has been stated above, the Agent for the Polish Government also raised the objection that, by virtue of Articles 149 and 157 of the Convention, "the matter had been settled by the Council of the League of Nations which is the final authority as regards measures to be taken", and that its "decision could not be subject to revision by the Court of International Justice".

If, as the Court thinks, this objection must be understood as putting forward a plea on the ground that the German submissions could not be entertained, the Court cannot consider this plea as being well founded.

The "decision" in question is the "Resolution" referred to above, which the Council adopted on March 12th, 1927, passing on an appeal made by the German Association for Polish Upper Silesia (*Deutscher Volksbund für Polnisch Oberschlesien*). It is consequently a resolution taken by virtue of powers conferred upon the Council by Article 149 of the Geneva Convention.

The situation arising from the co-existence of these powers and of the jurisdiction conferred upon the Court by Article 72, paragraph 3, has not been defined by the Convention. But in the absence of any special regulation in this respect, the Court thinks it appropriate to recall its earlier observation, namely, that the two jurisdictions are different in character.

In any case, it is clear from the discussions which took place before the Council that the latter did not wish to settle the question of law raised by the German representative and a solution to which is requested by the Application which gave rise to the present proceedings. The Resolution specifically states in paragraph V that: "The arrangement provided for in paragraphs II, III and IV above shall be regarded as an exceptional measure designed to meet a *de facto* situation not covered by the Convention of May 15th, 1922", and that "it shall not be interpreted as in any way modifying the provisions of that Convention". And if there were still any doubts left as to the scope of the Council's Resolution, the Council itself has dispelled them by specifically stating in the

course of its meeting of December 8th, 1927, that the legal question had not been settled. On this point, the Court refers to what it has set out above.

In the Counter-Case, the Agent for the Polish Government has, in respect of the third German contention, submitted observations which may be construed as making a reservation with regard to the plea that the suit could not be entertained by the Court. For he stated that he was not in a position to express any opinion with regard to the last part (the third contention) of the German submissions, because the German Government had nowhere in its Case supplied an example illustrating that contention and because, in the opinion of the Polish Government, it is not incumbent upon the courts to enunciate general principles otherwise than in regard to actual facts before them. However, the Polish Government reserves to itself the right of submitting its observations in the event of its adversary making a more precise claim and adducing concrete facts. The German Government having in its written Reply adduced certain facts which in its opinion showed the necessity for obtaining a decision by the Court in conformity with that Government's contention, the Agent for the Polish Government has not in his written Rejoinder stated anything in respect of that contention. In his pleadings before the Court, he confined himself either to putting in issue the existence of the facts invoked or to denying that these facts could be attributed to the Polish Government, or that they could be taken as demonstrating that there had been treatment of a discriminatory character to the detriment of the German minority schools in Polish Upper Silesia. There is thus no actual plea of inadmissibility for the Court to consider.

II.

Before considering the case on its merits, the Court deems it necessary to establish what is the relationship existing between the provisions of Division I of the third Part of the Geneva Convention and those which are to be found in Division II of the same Part.

The Court in this respect recalls the fact that the provisions of Division I are provisions the terms of which were settled beforehand by the Conference of Ambassadors. They had to be

accepted such as they were and subject to no modifications. This is clear from the Preamble to Division I and from the provision which is to be found in Article 72 under paragraph 1. These provisions constitute a separate category among the provisions relating to the protection of minorities, and subsequent provisions entered into between the contracting Parties cannot modify them or be construed as being contradictory and thus diminishing the extent of the protection provided. (See in this respect the Preamble to Division II quoted above, which declares that the provisions of this Division are adopted without prejudice to the provisions of Division I.)

The final Protocol signed by the Parties on the same day as the Convention itself, by the terms of Article XV, further accentuates the fact that the provisions of Division I should not be overridden.

[*Translation.*]

"None of the provisions of the Convention modifies in any way the provisions of Articles 65 to 72."

Article 65 confers upon some of these articles a still more predominant character when it lays down that the two contracting Parties undertake "that the stipulations contained in Articles 66 to 68 should be recognized as fundamental laws and that no law, regulation or official action shall conflict or interfere with these stipulations, nor shall any law, regulation or official action prevail over them". This provision is again repeated in Article 73 with the further addition that "the tribunals and courts of justice including administrative, military and extraordinary tribunals shall be competent to examine legislative or administrative provisions in order to ascertain whether they conflict with the stipulations of this Part".

In view of the particular and predominant character of the provisions of Division I of the Convention, it follows that any construction of the provisions of Division II which would conflict with the meaning of the provisions of Division I must be excluded. The stipulations of Division II must be construed in the light of the stipulations of Division I and not the reverse.

It follows from the proceedings in the present case that the Governments concerned are not in agreement as to the principle which, as regards the two portions of Upper Silesia, determines the question whether a person belongs or not to a racial, linguistic or religious minority. Basing itself upon Article 74, which prohibits the authorities from verifying or disputing "the question whether a person does or does not belong" to such a minority, Germany is of the opinion that by this article the Parties have by common agreement adopted the principle that this question must be left to the subjective expression of the intention of the persons concerned, and that this intention must be respected by the authorities even where it appears to be contrary to the actual state of facts.

On the other hand, Poland considers that the question whether a person does or does not belong to one of the said minorities is a question of fact and not one of intention, and that such is the true meaning of the provisions of Division I of the third Part of the Geneva Convention, provisions which could not be modified by those of Division II of that Part. If Article 74 leads to the conclusion that the persons concerned may themselves declare whether they do or do not belong to the minorities in question, such a declaration must be in accordance with the facts. A person who, in a manner clearly contrary to the facts, were to declare that he belongs to a minority would, in the opinion of the Polish Government, be committing an abuse which could not be tolerated.

The Court is of opinion that Poland is justified in construing the Minorities Treaty (the provisions of which, subject to slight modifications of no importance in this connection, are embodied as such in Division I of the third Part of the Geneva Convention) as meaning that the question whether a person does or does not belong to a racial, linguistic or religious minority, and consequently is entitled to claim the advantages arising under the provisions which the Treaty comprises with regard to the protection of minorities, is a question of fact and not solely one of intention. The Treaty became directly operative over the whole of the territories which the Treaty of Versailles transferred from Germany to Poland. Although the Minorities Treaty does not specifically state what persons belong to a minority, it must not, therefore, be inferred that

there exists a gap which must necessarily be filled by subsequent stipulations. The Treaty would fail in its purpose if it were not to be considered as an established fact that persons who belonged *de facto* to such a minority must enjoy the protection which had been stipulated.

If this is the meaning which must be attributed to the provisions of the Minorities Treaty embodied in Division I of the third Part of the Geneva Convention with the purpose of conferring upon them the character indicated above, it does not, however, follow that the contracting Parties were unable validly to agree to extend the rights provided as regards minorities also to persons who do not in the normal course come within the conception of a minority. It would not be in conformity with a true construction of the provisions of the Minorities Treaty nor of the provisions of Article XV of the final Protocol referred to above, to consider as excluded the extension of the advantages of protection stipulated on behalf of minorities to persons who in fact do not belong to a minority. But, on the other hand, such an extension cannot be presumed. On the contrary, there is a presumption that the provisions of the Convention are in conformity with the principles underlying the Minorities Treaty.

Among those of the articles of the Convention adduced by the German Government in support of its contention, Article 74 alone refers in general to the question whether a person does or does not belong to a racial, linguistic or religious minority. Article 131 solely deals with a special question, that of the language of the pupil or child.

Article 74 runs as follows :

“The question whether a person does or does not belong to a racial, linguistic or religious minority may not be verified or disputed by the authorities.”

Does this stipulation provide a sufficient basis for the construction attributed thereto by the German Government and according to which it is a question of intention alone (the “subjective principle”) ? The Court does not think so.

In the first place it should be observed that the article does not state in specific terms that it is a declaration by a person which is decisive as to whether such person belongs to a

minority, nor that such declaration must be a declaration of intention alone and not a declaration determining what such person considers to be the *de facto* situation in the particular case. The prohibition as regards verification or dispute which is comprised in the article can be quite easily understood even if the construction placed upon it by Germany be rejected.

There is reason to believe that, in the conditions which exist in Upper Silesia, a multitude of cases occur in which the question whether a person belongs to a minority particularly of race or language does not clearly appear from the facts. Such an uncertainty might for example exist, as regards language, where either a person does not speak literary German or literary Polish, or where he knows and makes use of several languages, and, as regards race, in the case of mixed marriages. If the authorities wish to verify or dispute the substance of a declaration by a person, it is very unlikely that in such cases they would be able to reach a result more nearly corresponding to the actual state of facts. Such a proceeding on the part of the authorities would, moreover, very easily assume in public opinion the aspect of a vexatious measure which would inflame political passions and would counteract the aims of pacification which are also at the basis of the stipulations concerning the protection of minorities.

In the opinion of the Court, the prohibition of verification and dispute has as its object not the substitution of a new principle for that which in the nature of things and according to the provisions of the Minorities Treaty determines membership of a racial, linguistic or religious minority, but solely the avoidance of the disadvantages—particularly great in Upper Silesia—which would arise from a verification or dispute on the part of the authorities as regards such membership. That the principle has remained unchanged is further confirmed by Article 131, which, as will be shown below, provides for a declaration with regard to a question of fact (*quelle est la langue d'un élève ou enfant?*) and not a declaration of intention.

It must be admitted that the prohibition of any verification or dispute on the part of the authorities may lead to certain persons, who, in fact, do not belong to a minority, having to

be treated as though they belonged thereto. That, in the opinion of the Court, is a consequence which the contracting Parties accepted in order to avoid the much greater disadvantages which would arise from verification or dispute by the authorities. If, according to what has been stated above, a declaration which clearly does not conform to the facts is to be considered as not in conformity with the Geneva Convention, it does not follow, as the Polish Government appears to maintain, that the prohibition to verify or dispute ceases to be applicable in such a case. The prohibition which is expressed in unqualified terms cannot be subject to any restriction. But it must not be inferred from this that the construction given above, according to which the declaration must on principle be in conformity with the facts, is therefore of no value. It is indeed of some importance to establish what is the situation at law.

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Turning, then, to the second contention advanced by the German Government, the Court recalls that this contention implies that persons legally responsible for the education of a pupil or a child have unfettered liberty "to choose the language of instruction and the corresponding school for such pupil or child, subject to no verification, dispute, pressure or hindrance on the part of the authorities".

The provisions which the German Government invoked in support of the contention are, in addition to Article 74, the interpretation of which the Court has given above, Articles 106 and 131 of the Geneva Convention, the terms of which are as follows:

"Article 106.

§ 1.

1. — Il sera créé une école minoritaire, sur la demande d'un ressortissant, appuyée par les personnes légalement responsables de l'éducation d'au moins quarante enfants d'une minorité de langue, à condition que ces enfants soient ressortissants de l'État, appartiennent à une même

communauté scolaire (*Schulverband* — *związek szkolny*), aient l'âge où l'enseignement est obligatoire, et soient destinés à fréquenter ladite école.

2. — Si quarante de ces enfants au moins appartiennent à la même confession ou religion, il sera créé sur demande une école minoritaire du caractère confessionnel ou religieux demandé.

3. — Dans le cas où la création d'une école minoritaire n'est pas expédiente pour des raisons spéciales, il sera formé des classes minoritaires.

§ 2.

Il devra être donné satisfaction aux demandes mentionnées aux alinéas 1 et 2 du paragraphe premier, dans le plus bref délai possible et au plus tard au début de l'année scolaire qui suivra la demande, à condition que celle-ci ait été présentée neuf mois au moins avant le début de l'année scolaire¹.

Article 131.

1. — Pour établir quelle est la langue d'un élève ou enfant, il sera uniquement tenu compte de la déclaration verbale ou écrite de la personne légalement responsable de son éducation. Cette déclaration ne pourra faire l'objet d'aucune vérification ou contestation de la part des autorités scolaires.

¹ Translation by the Registry :

Article 106.

§ 1.

1.—A minority school shall be established on the application of a national, supported by the persons legally responsible for the education of at least forty children belonging to a linguistic minority, provided that these children are nationals of the State, that they belong to the same school district (*Schulverband*—*związek szkolny*), that they are of the age at which education is compulsory, and that the intention is that they should attend the said schools.

2.—If at least forty such children belong to the same denomination or religion, a minority school of the denominational or religious character desired shall be established on application.

3.—Should the establishment of a minority school be inexpedient for special reasons, minority classes shall be formed.

§ 2.

The applications mentioned in paragraphs 1 and 2 of § 1 shall be complied with as expeditiously as possible and not later than the beginning of the school-year following the application, provided that the latter has been submitted at least nine months before the beginning of the school-year.

2. — Les autorités scolaires devront de même s'abstenir d'exercer toute pression, si minime qu'elle soit, ayant pour but le retrait de demandes de création d'institutions scolaires de minorités¹."

In order to indicate what is to be understood by "language of instruction", it is necessary to give also Article 132, which is as follows:

"Article 132.

§ 1.

Par langue véhiculaire ou par langue considérée comme matière d'enseignement, on entend la langue littéraire correcte soit polonaise, soit allemande.

§ 2.

Là où la langue d'une minorité est la langue véhiculaire, elle l'est pour l'enseignement de toutes les matières, sauf pour l'enseignement du polonais dans la partie polonaise du territoire plébiscité et pour l'enseignement de l'allemand dans la partie allemande dudit territoire, lorsque l'enseignement de ces langues fait partie du programme scolaire.

§ 3.

Les cours minoritaires de la langue de la minorité seront donnés dans cette langue²."

¹ *Translation by the Registry:*

"Article 131.

1.—In order to determine the language of a pupil or child, account shall be taken of the verbal or written statement of the person legally responsible for the education of the pupil or child. This statement may not be verified or disputed by the educational authorities.

2.—Similarly, the educational authorities must abstain from exercising any pressure, however slight, with a view to obtaining the withdrawal of requests for the establishment of minority educational institutions."

² *Translation by the Registry:*

"Article 132.

§ 1.

By language for imparting instruction or language considered as a subject of the curriculum is meant correct literary Polish or German as the case may be.

The Polish contention in the form in which it appears in the alternative (*éventuelle et subsidiaire*) submission is, on the other hand, that the persons legally responsible for the education of the pupil or child are free "to declare what is the language of the pupil or child". This contention is a negation of freedom of choice as regards language of instruction and the corresponding school. It also follows from the proceedings that Poland does not unreservedly accept that all verification or dispute by the authorities is excluded as regards the declaration.

Besides the articles quoted in the German submission, the Polish Government relies on Article 69 of the Convention, the first paragraph of which should here be recalled :

1. — En matière d'enseignement public, le Gouvernement allemand accordera dans les villes et districts où réside une proportion considérable de ressortissants allemands de langue autre que la langue allemande, des facilités appropriées pour assurer que dans les écoles primaires l'instruction sera donnée dans leur propre langue aux enfants de ces ressortissants allemands. Cette stipulation n'empêchera pas le Gouvernement allemand de rendre obligatoire l'enseignement de la langue allemande dans lesdites écoles¹.

1. — En matière d'enseignement public, le Gouvernement polonais accordera dans les villes et districts où réside une proportion considérable de ressortissants polonais de langue autre que la langue polonaise, des facilités appropriées pour assurer que dans les écoles primaires l'instruction sera donnée dans leur propre langue aux enfants de ces ressortissants polonais. Cette stipulation n'empêchera pas le Gouvernement polonais de rendre obligatoire l'enseignement de la langue polonaise dans lesdites écoles.

§ 2.

When a minority language is the language for imparting instruction, it shall be used for the teaching of all subjects except for the teaching of Polish in the Polish part of the plebiscite territory and for the teaching of German in the German part of that territory, when instruction in these languages forms part of the school curriculum.

§ 3.

Minority courses in the minority language shall be given in that language."

¹ Translation by the Registry :

1.—Germany will provide in the public educational system in towns and districts in which a considerable

1.—Poland will provide in the public educational system in towns and districts in which a considerable

That Government infers that the minority language schools, classes or courses provided for by Article 105 of the Convention (see Annex) are only intended for pupils of a tongue other than Polish whose parents are also of that other tongue. The Polish Government consequently considers that the declaration provided by Article 131 for the purposes of establishing what is the tongue of the pupil or child contemplates the ascertainment of a fact and not the expression of an intention or of a wish.

As regards the point whether Article 131 contemplates a declaration which ascertains a fact and not an expression of an intention or of a wish, the Court adopts the construction put upon it by the Polish Government. The terms of the article clearly bear this meaning (*pour établir quelle est la langue d'un élève ou d'un enfant*). These terms are also completely in harmony with the terms of Article 105 (*enfants d'une minorité de langue*) as well as with those of Article 107 (*élèves.... qui.... appartiennent à une minorité de langue*). This construction is moreover in conformity with the meaning of the words *dans leur propre langue* used in Article 69. The Court does not find in the text of the Convention any grounds for construing Article 131 as does the German Government, as solely contemplating a declaration of intention or of a wish that the instruction of a child or pupil should be given in the minority language. On this point the Court refers also to what it has stated above in regard to Article 74.

The Court having to adjudicate upon contentions submitted on the basis of the Geneva Convention, cannot attribute any particular importance to the fact that the Voïvode of Silesia, in conformity with an opinion given by the President of the Mixed Commission, has struck out from the forms for the requests provided for under Articles 106 and 107

proportion of German nationals of other than German speech are residents, adequate facilities for ensuring that in the primary schools the instruction shall be given to the children of such German nationals through the medium of their own language. This provision shall not prevent the German Government from making the teaching of the German language obligatory in the said schools.

proportion of Polish nationals of other than Polish speech are residents, adequate facilities for ensuring that in the primary schools the instruction shall be given to the children of such Polish nationals through the medium of their own language. This provision shall not prevent the Polish Government from making the teaching of the Polish language obligatory in the said schools.

the passage requiring a declaration as regards the "mother-tongue" of the child. This action may moreover be explained by the fact that the text itself of the articles in question does not require a declaration on this point and that the Convention does not employ the phrase *langue maternelle* (mother-tongue).

Nor does the Court attach much importance to the argument which the German Government drew from the attitude adopted by the Polish Government during the negotiations which took place between Poland and the Free City of Danzig and which led to the Agreement of October 24th, 1921, concluded less than one month before the commencement of the negotiations with Germany relating to Upper Silesia. According to the German Government, the Polish Government had then demanded the adoption of the principle which the German Government now maintains. The Court does not find this to be quite correct. Poland then advocated two things: (1) that the admission to the minority schools at Danzig should not depend upon the condition that the child should be both racially and linguistically Polish, but that it should be sufficient for it to be either Polish by origin or Polish by language; (2) that the declaration of the person responsible for the education of the child should be decisive as to whether the child was of Polish tongue or of Polish origin, any verification of the truth of this declaration by the school authorities being prohibited. Poland thus claimed two different bases each of which was to suffice for admission to minority schools, namely, either the Polish origin or the Polish tongue of the child. The second basis alone would seem to have been adopted in the Geneva Convention. The request of Poland in this respect appears to correspond perfectly with the substance of the first paragraph of Article 131 of the Geneva Convention and therefore cannot provide an argument in favour of the construction of this article proposed by Germany.

But although the conclusion drawn by the Court from the terms of the Convention is that Article 131 contemplates a declaration which on principle must refer to the existence of a fact and not express an intention or a wish, that does not exclude the possibility, when appreciating those facts, of properly taking into account a subjective element. Indeed,

what is to be understood as a person's tongue is not always clear and beyond doubt; particularly when a child reaching the school age is concerned, it is no doubt proper not exclusively to take into account the language which the child generally employs if the parents employ another language to satisfy their cultural requirements and if it is that language which they by preference consider as their own. What has just been stated is particularly true as regards Upper Silesia, considering the very special conditions which, according to the information supplied in the course of the proceedings, appear to exist there from a linguistic point of view.

The German contention raises yet another question: namely whether, according to the Convention, the admission of a pupil or child to the minority schools (classes or courses) depends upon a declaration in accordance with Article 131.

In this connection the Court observes that it seems to be beyond doubt that Article 69 does not imply an obligation for the States in question to grant "appropriate facilities" for instruction in the language of the minority to be given in public primary schools to other pupils or children than those whose language is that of the minority. But, according to what has been stated above in regard to the relations between the provisions of Division I and those of Division II, it would be unreasonable to construe these stipulations of the article in question as being opposed to an extension by the Convention of the participation in the same advantages to other pupils and children. The question therefore is whether the Convention has provided for such an extension. The President of the Mixed Commission considered that it was necessary to distinguish between, on the one hand, requests for the purpose of establishing a minority school or courses in a minority language—with regard to which Articles 106 and 107 laid down certain rules—and, on the other hand, simple requests for the admission of a pupil to an existing minority school. The latter, with regard to which the Convention has not laid down any rules, are not, according to him, subject to any formality or any condition, with regard to language. The basis of this construction appears in the first place to be the "subjective principle" which, according to the German Government, was laid down by Articles 74 and 131, but which

according to the above construction placed on these articles by the Court cannot be inferred therefrom.

Another ground for this construction would appear to be the right of equal treatment which Article 68 of the Convention guarantees to minorities; the terms of this article are as follows¹:

Les ressortissants allemands appartenant à des minorités ethniques, de religion ou de langue, jouiront du même traitement et des mêmes garanties en droit et en fait que les autres ressortissants allemands. Ils auront notamment un droit égal à créer, diriger et contrôler à leurs frais des institutions charitables, religieuses ou sociales, des écoles et autres établissements d'éducation, avec le droit d'y faire librement usage de leur propre langue et d'y exercer librement leur religion.

Les ressortissants polonais appartenant à des minorités ethniques, de religion ou de langue, jouiront du même traitement et des mêmes garanties en droit et en fait que les autres ressortissants polonais. Ils auront notamment un droit égal à créer, diriger et contrôler à leurs frais des institutions charitables, religieuses ou sociales, des écoles et autres établissements d'éducation, avec le droit d'y faire librement usage de leur propre langue et d'y exercer librement leur religion.

Although this article has not been invoked in the German submissions as regards the contention in question here, it appears from the proceedings that the German Government finds in Article 68 an argument to prove that there exists a freedom to choose the minority school without any obligation of making the declaration provided for by Article 131. The Court therefore considers it necessary to examine this argument.

¹ *Translation by the Registry :*

German nationals who belong to racial, religious or linguistic minorities shall enjoy the same treatment and security in law and in fact as the other German nationals. In particular they shall have an equal right to establish, manage and control at their own expense charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein.

Polish nationals who belong to racial, religious or linguistic minorities shall enjoy the same treatment and security in law and in fact as the other Polish nationals. In particular they shall have an equal right to establish, manage and control at their own expense charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein.

In the course of the oral proceedings the German Government expressed the opinion that the principle of equal treatment of all nationals laid down by Articles 67 and 68 of the Convention would be violated if, as regards the mere admission of a child to a minority school, a declaration containing anything besides a mere request for admission were to be demanded from the person responsible for the child's education. This reasoning appears to be as follows: no special declaration is required for the admission of the child to a majority school; consequently, by virtue of the principle of equal treatment, the same should be the case as regards admission to minority schools.

The Court is unable to adopt this reasoning. It considers that Article 67 (see Annex) has no relation to the question set out above. As regards Article 68, it should be observed that it cannot be construed leaving Article 69 out of consideration. In laying down the obligation to grant appropriate facilities for a child speaking the language of the minority to be taught in public primary schools in its own language, this article clearly shows that it is perfectly compatible with the principle of the "same treatment" guaranteed by Article 68, to restrict the enjoyment of these "facilities" to children whose language is the minority language. And if, to ensure the observance of this rule, a declaration as to the language of the child is required, that also cannot be regarded as a violation of the principle of the "same treatment" established by Article 68.

Article 69, in fact, bestows an advantage which is dependent on the fulfilment of certain conditions; the fact that this advantage is not obtainable if the conditions in question are not fulfilled does not therefore raise any question of equality of treatment. It follows from what has already been said that a refusal to admit to minority schools (classes or courses) children who, according to the declaration of the persons responsible for their education, only speak Polish or in respect of whom the declaration as to the child's language is lacking, cannot be regarded as contrary to the Convention.

If a declaration has been made, it must always be respected. With regard to Article 131, as well as to Article 74, the Court

holds that the prohibition as regards any verification or dispute does not cease to apply in cases where it appears that the declaration is not in accordance with the facts. In regard to this, the Court refers to what it has already said concerning Article 74.

* * *

Approaching now the third contention of the German Government, the Court observes that Article 68 of the Convention is alone relevant in this connection. For Article 65 (see Annex), which the German Government has also cited, adds nothing to the principles contained in Article 68, but endows them with a peculiarly important and predominant character. As regards Article 72, paragraph 2, and the Preamble to Division II (see Annex), which are also cited, no explanation has been given enabling the Court to take them into consideration.

According to the German contention, the measures in question are those described in the original English version as "singling out the minority schools to their detriment". This expression, in the opinion of the Court, means measures which constitute a treatment of minority schools less favourable or more unfavourable than the treatment accorded to other schools, and a treatment which is at the same time of a more or less arbitrary character.

In support of its contention, the German Government, in its Reply, has alleged that, since the putting into force of the Convention, the German minority schools have been, in most cases, organized and maintained in face of strong opposition on the part of the Polish authorities. It has stated that more than 700 petitions emanating from members of the minority who complain of arbitrary interference on the part of the Polish authorities in the affairs of minority schools, are still pending, and that seven collective petitions also exclusively relating to minority schools, have been submitted to the Council of the League of Nations, in accordance with Articles 149 and 157. In proof of its statement that the attitude of the Polish authorities has been hostile to the minority schools, the German Government has cited the fact that, in an Opinion given on October 12th, 1927, the President of the Mixed

Commission, in regard to the enquiry ordered by the competent authorities for the purpose of hearing all persons who had asked for the establishment of a minority school at Gieraltowice, made the following statement :

“L'interrogatoire dut faire aux personnes légalement responsables de l'éducation l'impression d'un essai de pression destinée à les faire renoncer à la création d'une école minoritaire, d'autant plus que la minorité est engagée depuis des années dans une lutte permanente avec les autorités sur le terrain de l'école minoritaire. D'après l'article 131, alinéa 2, il est interdit aux autorités d'exercer une influence, si minime qu'elle soit, en vue du retrait de la demande faite dans le sens de l'article 106; il est donc évident que les autorités compétentes ont violé cet article¹.”

As examples of a partial attitude on the part of the authorities, the German Government has also cited two special cases, one relating to the attitude adopted by the police of Brzezic in connection with a Christmas festivity arranged by the minority school, and the other concerning the fact that in the commune of Brzezinka, the school authorities had established the minority school at a place situated about three quarters of an hour away from the locality where most of the children entered for the school lived, though premises could have been found in that locality.

The Court considers that a generally hostile attitude on the part of the authorities in regard to minority schools, an attitude manifested by more or less arbitrary action, is not compatible with the principle laid down in Article 68. The Court, moreover, has found nothing in the documents and statements submitted in the course of the proceedings which would show that Poland questions, as not well founded, Germany's contention that any measure singling out the

¹ *Translation by the Registry :*

“The persons legally responsible for the children's education must have received the impression that the enquiry was an attempt to exert pressure to induce them to abandon the request for the creation of a minority school, more especially seeing that the minority has been engaged for years in a continuous struggle with the authorities in regard to the question of the minority school. Under Article 131, paragraph 2, the authorities are forbidden to exercise any pressure, however slight, with a view to obtaining the withdrawal of requests made under Article 106; it is therefore obvious that the competent authorities have contravened this article.”

minority schools to their detriment is incompatible with the equal treatment guaranteed by Article 68. On the other hand, the Court does not intend to express an opinion on the question whether the attitude of the authorities has, in fact, been discriminatory, for it has not been asked for a decision in regard to any concrete measure alleged to be of this character.

In these circumstances, the Court holds that it is not incumbent upon it to pass judgment on the third of the German contentions.

*

FOR THESE REASONS,

The Court,

having heard both Parties,
by eight votes to four,
gives judgment as follows:

(1) that the objections, whether to the jurisdiction or respecting the admissibility of the suit, raised by the Respondent, must be overruled;

(2) that Articles 74, 106 and 131 of the German-Polish Convention of May 15th, 1922, concerning Upper Silesia, bestow upon every national the right freely to declare according to his conscience and on his personal responsibility that he does or does not belong to a racial, linguistic or religious minority and to declare what is the language of a pupil or child for whose education he is legally responsible;

that these declarations must set out what their author regards as the true position in regard to the point in question and that the right freely to declare what is the language of a pupil or child, though comprising, when necessary, the exercise of some discretion in the appreciation of circumstances, does not constitute an unrestricted right to choose the language in which instruction is to be imparted or the corresponding school;

that, nevertheless, the declaration contemplated by Article 131 of the Convention, and also the question whether a person

does or does not belong to a racial, linguistic or religious minority, are subject to no verification, dispute, pressure or hindrance whatever on the part of the authorities ;

(3) that the Court is not called upon to give judgment on that portion of the Applicant's submission according to which any measure singling out the minority schools to their detriment is incompatible with the equal treatment guaranteed by Articles 65, 68, 72, paragraph 2, and by the Preamble of Division II of Part III of the Convention.

Done in English and French, the French text being authoritative, at the Peace Palace, The Hague, this twenty-sixth day of April, nineteen hundred and twenty-eight, in three copies, one of which is to be placed in the archives of the Court, and the others to be forwarded to the Agents of the applicant and respondent Parties respectively.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

M. Huber, Former President, M. Nyholm, Judge, M. Negulesco, Deputy-Judge, and M. Schücking, National Judge, declaring that they are unable to concur in the judgment given by the Court and availing themselves of the right conferred on them by Article 57 of the Statute, have delivered the separate opinions which follow hereafter.

(Initialled) D. A.

(Initialled) Å. H.